

Treasury may issue out of the Consolidated Fund of the United Kingdom or the growing produce thereof such sums, not exceeding in the whole the sum of thirty-four million pounds, as may be required by the Postmaster-General for developing, according to estimates approved by the Treasury, the postal, telegraphic, and telephonic systems.

(2) The Treasury may, if they think fit, for the purpose of providing money for sums so authorised to be issued out of the Consolidated Fund, or for repaying to that fund all or any part of the sums so issued, borrow by means of terminable annuities for a term not exceeding twenty years, and all sums so borrowed shall be paid into the Exchequer.

(3) The said annuities shall be paid out of moneys provided by Parliament for the service of the Post Office, and if those moneys are insufficient shall be charged on and paid out of the Consolidated Fund, or the growing produce thereof.

(4) The Treasury may also, if they think fit, for the same purpose borrow money by means of the issue of Exchequer Bonds, and the Capital Expenditure (Money) Act, 1904, shall have effect as if this Act had been in force at the time of the passing of that Act.

(5) Section five of the Telephone Transfer Act, 1911, (which relates to audit), shall have effect as if this Act were included amongst the Acts therein mentioned.

2. This Act may be cited as the Post Office and Telegraph (Money) Act, 1935.

CHAPTER 15.

An Act to amend the Post Office Act, 1908, and other enactments relating to the Post Office.

[28th March 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same, as follows :—

Provisions
as to money
orders.

1.—(1) The special form in which postal orders may be issued in accordance with the provisions of section twenty-four of the principal Act shall be prescribed by the Postmaster-General, and accordingly in subsection (1) of that section for the words “the regulations made under the preceding section” there shall be substituted the word “him”.

(2) Proviso (a) to subsection (1) of the said section twenty-four shall cease to have effect and the amounts for which postal orders may be issued and the poundage to be payable in respect of them shall be such as may be prescribed by Post Office Regulations :

Provided that the poundage payable in respect of a postal order for an amount not exceeding twenty-one shillings shall not exceed twopence.

(3) Proviso (b) to subsection (1) of the said section twenty-four (which provides that a postal order shall not be issued until the amount thereof has been paid) shall cease to have effect, and proviso (c) to that subsection shall have effect as if the words “such period “ after the date of the issue of a postal order as may be “ prescribed by Post Office regulations ” were substituted for the words “three months from the last day of the “ month in which a postal order is issued by the Post “ Office”

(4) Subsection (2) of the said section twenty-four (which provides that no interest shall be payable in respect of any postal order) shall apply to all money orders.

Amendment
as to postal
rates.

2.—(1) Paragraph (c) of subsection (1) of section two of the principal Act (which fixes the highest rate of postage on single newspapers) shall cease to have effect.

(2) Paragraph (d) of the said subsection (which authorises special rates for postal packets consisting of books and papers impressed for the use of the blind) shall have effect as if after the word “blind” there were inserted the words “or paper posted to any person “ for the purpose of being so impressed or any articles “ specially adapted for the use of the blind.”

(3) It is hereby declared that a warrant of the Treasury made for the purposes of subsection (2) of section two of the principal Act may provide that, in such cases and subject to such conditions as may be prescribed therein, no additional postage shall be charged on an inland letter or packet which is not prepaid or is insufficiently prepaid, or that the postage so charged shall be at such rate less than double the amount of the postage otherwise chargeable, or of the deficiency, as may be so prescribed.

3.—(1) The provisions of sections fourteen and fifteen of the Post Office (Parcels) Act, 1882 (which relate to the application of the Customs Acts to parcels) shall have effect as if the references in the said section fourteen to “foreign parcels” included references to such foreign postal packets as may be specified by regulations made under that section, and as if the references in the said section fifteen to “inland parcels” included references to such inland postal packets as may be specified in regulations made under that section, and the expressions “foreign” and “inland” shall have the same meaning in relation to such postal packets as they have in relation to parcels.

Extension of
45 & 46 Vict.
c. 74,
ss. 14 & 15
to all
postal
packets.

(2) Subsection (2) of the said section fourteen shall have effect as if the words “treaty, convention, or” were omitted and for the words “any foreign state or the government of any British possession” there were substituted the words “the government or postal administration of any other country.”

4.—(1) Sections twenty-seven to thirty-two, thirty-four and fifty-one of the principal Act shall apply in relation to the carriage of postal packets by air as they apply in relation to the carriage of such packets by water.

Amendment
of provi-
sions as to
carriage of
letters by
water and
extension to
carriage by
air.

(2) Paragraph (a) of subsection (2) of section thirty of the principal Act, and subsection (3) of that section (which impose a limit on the weight of shipowners' letters) shall cease to have effect.

(3) Post Office regulations made for the purpose of section thirty-one of the principal Act may provide for the allowance to owners of vessels or aircraft of the gratuities mentioned in that section, and subsection (1)

of section thirty of the said Act in so far as it relates to such gratuities shall cease to have effect.

10 & 11 Vict.
c. 27.

(4) The Harbours, Docks and Piers Clauses Act, 1847, as incorporated with any Act passed after the commencement of this Act or with any scheme or order made under or confirmed by any such Act, shall have effect as if in section twenty-eight thereof (which exempts certain vessels from the provisions of the Act) for the words from "or any packet boat" to "any such packet boat or packet" there were substituted the words "or
" any vessel employed by or under the authority of the
" Postmaster-General for the conveyance under contract
" of postal packets as defined by the Post Office Act,
" 1908, not being a vessel also conveying passengers
" or goods for hire or reward, or any mail bag as defined
" by the said Act conveyed by any such vessel."

8 Edw. 7.
c. 48.

Provisions
as to land.

5.—(1) The following subsection shall be substituted for subsection (1) of section forty-six of the principal Act :—

" (1) The Postmaster-General may, with the consent of the Treasury, acquire land for the purpose of the Post Office by purchase, exchange, lease, gift or in any other manner whatsoever, and the consent of the Treasury for the purpose of this subsection and of the next following section may be given either generally for any class of case or for any particular transaction."

(2) Any question as to whether any other land is injuriously affected by the use by the Postmaster-General of any land acquired by him (whether before or after the commencement of this Act), or as to the amount of compensation payable in respect of any such injurious affection, shall, notwithstanding that the land acquired may not be or may not have been compulsorily acquired, be determined by arbitration under and in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919, unless the parties agree on some other method of determination.

9 & 10
Geo. 5. c. 57.

(3) The powers of the Postmaster-General under section forty-seven of the principal Act of disposing, with the consent of the Treasury, of land vested in him shall be deemed to include a power to dedicate any such

land by deed for the use of the public whether as a highway or otherwise.

(4) In this section, and in sections forty-five to forty-seven of the principal Act, the expression "land" includes any estate or interest in or over land.

6.—(1) Post Office regulations may provide for the disposal of postal packets in course of transmission by post in cases where the Postmaster-General is satisfied that the addressee of a packet is dead.

Miscellaneous powers to be exercised by Post Office regulations.

(2) Post Office regulations made for the purpose of section twelve of the principal Act may prescribe the extent to which written matter may be permitted on the covers of postal packets and the character of the written matter to be so permitted.

7.—(1) Any cash on delivery service established by the Postmaster-General in respect of:—

Cash on delivery service.

- (a) inland postal packets; and
- (b) postal packets transmitted between a British postal country or British postal agency and any other such country or agency; and
- (c) postal packets transmitted between a British postal country or agency and any country or place outside the British Islands, not being a British postal country or agency, but being a country or place the postal administration of which has made an arrangement with the Postmaster-General for the purpose of this section,

shall be conducted in accordance with such provisions as may be contained in Post Office regulations.

(2) The regulations made for the purpose of this section may prescribe the terms on which and the conditions subject to which a cash on delivery packet may be posted, conveyed and delivered and, in particular, may—

- (a) authorise the Postmaster-General to withhold delivery of such a packet until the sums payable in respect thereof have been paid; and
- (b) provide for the remission to the senders of such packets, by means of money orders, of the sums payable to them in respect of the packets.

(3) Where a cash on delivery packet is delivered in a British postal country or British postal agency without the sums payable in respect thereof having been paid, the Postmaster-General may by notice in writing require the addressee of the packet within the time specified in the notice either to pay the said sums or to redeliver the packet intact to the Postmaster-General, and, if the addressee fails to comply with the notice, the Postmaster-General shall be entitled to recover the said sums as a debt due to him from the addressee.

(4) In this section the expression "cash on delivery service" means a service whereby the Postmaster-General or other postal administration undertakes at the request of the sender of a postal packet to collect, or secure the collection of, a sum of money on his behalf from the addressee of the packet as a condition of delivery.

Amend-
ments as to
fictitious
stamps.

8.—(1) Post Office regulations may provide that, for such purposes and subject to such conditions as may be prescribed by the regulations, it shall be lawful for a person to make, utter, deal in, sell or have in his possession a fictitious stamp or to make or have in his possession, a die, plate, instrument or materials for making such a stamp, and subsection (1) of section sixty-five of the principal Act shall have effect subject to any regulations so made.

(2) A person shall not knowingly use for the purpose of the Post Office any fictitious stamp.

(3) The Postmaster-General shall be substituted for the Commissioners of Inland Revenue as the authority by whose order a prosecution may be brought for a contravention of section sixty-five of the principal Act.

(4) Subsections (2) and (3) of the said section sixty-five, as amended by this section, shall apply in relation to contraventions of this section and the regulations made by virtue thereof as they apply in relation to contraventions of that section.

(5) Subsection (4) of the said section sixty-five shall cease to have effect and for the purposes of that section and this section the expression "fictitious

stamp" shall mean any facsimile, imitation or representation, whether on paper or otherwise, of any stamp for the time being authorised or required to be used for the purpose of the Post Office or of any stamp for denoting a current rate of postage of any country outside the British Islands.

(6) Nothing in this section shall affect the provisions of the said section sixty-five as applied or adapted by or for the purpose of any other enactment or regulations made thereunder.

9.—(1) No person shall without the authority of the Postmaster-General—

Prohibition
of the use of
the words
"Royal
Mail."

(a) place or maintain in or on any vessel, vehicle, aircraft or premises belonging to him or under his control; or

(b) use in any document in relation to himself or any other person or in relation to any vessel, vehicle, aircraft or premises;

the words "Royal Mail" or "Royal Air Mail" or any words, letters or marks which signify or imply or may reasonably lead the public to believe that the vessel, vehicle, aircraft or premises is or are used by the Postmaster-General or with his authority for the purpose of collecting or conveying postal packets or that he or that other person is authorised by the Postmaster-General to collect or convey such packets.

(2) Every person when required by a notice given by the Postmaster-General to remove or efface or cease to use any such words, letters or marks as aforesaid shall comply with the requirement.

(3) Subsection (1) of section sixty-six of the principal Act (which prohibits the use of the words "postal telegraph office") shall apply to the words "public telephone call office" and any other words, letters or marks which signify or imply or may reasonably lead the public to believe that any place is a place where the public may make telephone calls, as it applies to the words "postal telegraph office."

(4) Subsection (2) of the said section sixty-six shall apply in relation to a contravention of this section as it applies in relation to a contravention of that section.

Molestation
of officers
and offences
in connec-
tion with
telephones.

10.—(1) Subsection (1) of section sixty-seven of the principal Act (which imposes a penalty for obstructing officers of the Post Office) shall have effect as if references to obstructing an officer of the Post Office included references to molesting such an officer, and the penalty to which a person is liable under that subsection shall, instead of being a fine not exceeding forty shillings, be a fine not exceeding ten pounds or imprisonment for a term not exceeding one month or both such fine and imprisonment.

(2) If any person—

- (a) sends any message by telephone which is grossly offensive or of an indecent, obscene, or menacing character; or
- (b) sends any message by telephone, or any telegram, which he knows to be false, for the purpose of causing annoyance, inconvenience, or needless anxiety to any other person; or
- (c) persistently makes telephone calls without reasonable cause and for any such purpose as aforesaid;

he shall be liable upon summary conviction to a fine not exceeding ten pounds, or to imprisonment for a term not exceeding one month, or to both such fine and imprisonment.

Legal pro-
ceedings.

11.—(1) Nothing in any provision of the principal Act which provides for the recovery of any sum summarily as a civil debt shall be taken to affect any power to institute proceedings in a county court to recover that sum under and in accordance with section seventy-five of the County Courts Act, 1934.

24 & 25
Geo. 5. c. 53.

(2) References in any provision of the principal Act or this Act to a sum payable or recoverable or due in respect of a postal packet shall include references to—

- (a) any customs duty or other charges payable in respect of the packet, whether to His Majesty or to the government of any country outside His Majesty's dominions; and
- (b) any sums payable in respect of a cash on delivery packet.

(3) In any proceedings for the recovery of postage or other sums due in respect of postal packets, the production of the packet in respect of which any such postage or sum is sought to be recovered having thereon a stamp or other endorsement of the Post Office or any other postal administration denoting that the packet has been refused or rejected, or is unclaimed, or that the addressee was dead, or could not be found, shall be *prima facie* evidence of the fact denoted.

(4) The official mark of any sum on any postal packet as due in respect of that packet, whether the mark is the mark of the Post Office or of any other postal administration and whether the sum is marked as being due to the Postmaster-General or otherwise, shall in every court in the British Islands or a colony be *prima facie* evidence of the liability of the packet to the sum so marked, and the sum shall be recoverable in any such court as postage due to His Majesty.

(5) A certificate of the amount of any customs duty or other charges payable in respect of a postal packet, or of the amount of any sums payable in respect of a cash on delivery packet, being a certificate purporting to be signed by the Comptroller and Accountant-General of the Post Office, shall, in any legal proceedings for the recovery of any such duty, charges or sums, be sufficient evidence of the facts stated therein unless the contrary is shown.

(6) Where the consent or order of the Postmaster-General is required to or for any prosecution, an instrument purporting to be executed by an officer of the Post Office duly authorised in that behalf by or under this Act and stating that the prosecution has been consented to or ordered by the Postmaster-General shall be sufficient evidence of that fact, unless the contrary is shown.

12.—(1) Any instrument or document required or authorised to be executed or signed by the Postmaster-General (whether in his corporate capacity or otherwise), may be executed or signed on his behalf by the Director-General or Deputy Director-General of the Post Office or by such other officers of the Post Office (whether described by name or by reference to their rank or office or class of office) as may be prescribed by Post Office

Delegation
of powers of
Postmaster-
General to
officers.

regulations, either generally or as respects any class of instruments or documents, or as may be directed by the Postmaster-General as respects any particular instrument or document.

(2) Any instrument or document purporting to be executed or signed by an officer of the Post Office duly authorised in that behalf by or under this section shall, until the contrary is proved, be deemed to have been duly executed or signed, without proof of the authority or official character of the person purporting to have executed or signed it.

31 & 32 Vict.
c. 37. (3) In paragraph (a) of section thirty-six of the principal Act (which extends the Documentary Evidence Act, 1868) the words "the Director-General or Deputy Director-General or any assistant secretary" shall be substituted for the words "any secretary or assistant secretary."

Minor
amend-
ments.

13. The enactments set out in the first column of the First Schedule to this Act shall have effect subject to the amendments respectively specified in the second column of that Schedule, being amendments of minor detail or consequential on the foregoing provisions of this Act.

Interpre-
tation.

14.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them:—

"British Islands" means the United Kingdom, the Channel Islands and the Isle of Man;

"Cash on delivery packet" means a postal packet in respect of which the Postmaster-General or other postal administration undertakes at the request of the sender thereof to collect, or secure the collection of, a sum of money on his behalf from the addressee of the packet as a condition of delivery;

"Post Office regulations" means regulations made under section eighty-two of the principal Act;

"The principal Act" means the Post Office Act, 1908.

8 Edw. 7.
c. 48.

(2) In this Act, and in any amendment made by this Act in the principal Act, the expression "British postal country" means the British Islands or any colony where a post is established by the Postmaster-General, and the expression "British postal agency" means any

place, situated in a foreign country, where a post is established by the Postmaster-General.

15.—(1) This Act shall extend to Northern Ireland, subject to the following modifications:—

- (a) the reference in subsection (4) of section four to any Act passed after the commencement of this Act shall include a reference to any Act so passed by the Parliament of Northern Ireland;
- (b) for the reference in subsection (2) of section five to the Acquisition of Land (Assessment of Compensation) Act, 1919, there shall be substituted a reference to that Act as amended by any Act of the Parliament of Northern Ireland;
- (c) for the reference in the amendment made by the First Schedule in section thirty-four of the principal Act to the Road Traffic Act, 1930, there shall be substituted a reference to the Motor Vehicles (Traffic and Regulation) Act (Northern Ireland), 1926, as amended by any other Act of the Parliament of Northern Ireland.

Extension
to Northern
Ireland, the
Channel
Islands and
the Isle of
Man.

20 & 21
Geo. 5. c. 43.

(2) This Act, except subsection (2) of section five, shall extend to the Channel Islands, and the Royal Courts of the Channel Islands shall register this Act accordingly.

(3) This Act shall extend to the Isle of Man, subject to the modification that for the reference in subsection (2) of section five to the Acquisition of Land (Assessment of Compensation) Act, 1919, there shall be substituted a reference to the Public Authorities Acquisition of Land Acts, 1923 and 1930, being Acts of the legislature of the Isle of Man.

16.—(1) This Act may be cited as the Post Office (*Amendment*) Act, 1935, and shall be construed as one with the Post Office Act, 1908, and the Post Office Acts, 1908 to 1920, and this Act may be cited together as the Post Office Acts, 1908 to 1935.

Short title,
construc-
tion and
repeal.

(2) The enactments set out in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULES.

FIRST SCHEDULE.

Sections 13
and 15.

MINOR AND CONSEQUENTIAL AMENDMENTS.

Enactment amended.	Amendment.
The Post Office Act, 1908 :—	
Section 4	For the words “ any foreign state ” where they first occur there shall be inserted the words “ the government of any other country or “ by the Postmaster-General with any other “ postal administration ”; and for the words “ foreign state ” where they secondly occur there shall be substituted the words “ other postal administration ”.
Section 15	For the words from “ the despatch or delivery next following ” to the end of the section there shall be substituted the words “ any subsequent despatch or delivery ”.
Section 16	After the word “ engravings ” there shall be inserted the words “ cinematograph films ”; and for the words “ of an indecent, obscene, libellous or grossly offensive character ” there shall be substituted the words “ which are “ grossly offensive or of an indecent, obscene “ or libellous character ”.
Section 17	The words “ at a rate not exceeding the letter rate of postage ” shall cease to have effect, and at the end of the section there shall be inserted the words “ or may be destroyed or “ otherwise disposed of as the Postmaster-General may direct ”.
Section 22	For the words “ or convention between His “ Majesty’s Government and the government “ of any British possession or foreign state ” there shall be substituted the words “ with the government or postal administration of any other country ”.
Section 27	In subsection (1) after the words “ inward bound ” there shall be inserted the words “ and every pilot or other person in charge of an aircraft inward bound ”; and after the word “ vessel ” where it secondly occurs there shall be inserted the words “ or aircraft ”.

Enactment
amended.

Amendment.

1st Sch.
—cont.The Post Office
Act, 1908 :—
Section 27

In subsection (2), for the words "The master of every such vessel" there shall be substituted the words "Where there are on board any such vessel or aircraft any postal packets required to be delivered as aforesaid, the master of the vessel or the pilot or other person in charge of the aircraft"; after the word "port" in both places where it occurs there shall be inserted the words "or place"; after the word "vessel" in the second place where it occurs there shall be inserted the words "or aircraft"; and for the words "which may be in the form contained in the First Schedule to this Act" there shall be substituted the words "in such form as may be prescribed by the Postmaster-General".

In subsections (3), (4) and (5) after the words "master of a vessel" there shall be inserted the words "or the pilot or other person in charge of an aircraft"; and after the word "vessel" where it secondly occurs in subsection (5) there shall be inserted the words "or aircraft".

Section 28 After the words "master of a vessel" in both places where they occur there shall be inserted the words "or pilot or other person in charge of an aircraft," and for the words "bring on shore" there shall be substituted "deliver to the Post Office".

Section 29 After the word "vessel" wherever it occurs there shall be inserted the words "or aircraft." In subsection (1) for the words "which may be on board contrary to this Act" there shall be substituted the words "within the exclusive privilege of the Postmaster-General".

Section 30 In subsection (1) after the word "vessels" in the first and second places where it occurs there shall be inserted the words "or aircraft"; after the word "port" there shall be inserted the words "or place"; after the word "vessel's" there shall be inserted the words "or aircraft's"; after the word "master" there shall be inserted the words "of the vessel or the pilot or other person in charge of the aircraft".

1st SCH.
—cont.Enactment
amended.

Amendment.

The Post Office
Act, 1908 :—Section 30
—cont.

In paragraph (c) of subsection (2) after the word “manifest” there shall be inserted the words “or by the manifest and declaration of the aircraft”; and after the word “vessel” there shall be inserted the words “or aircraft”.
In subsection (4) after the word “vessel” in both places where it occurs there shall be inserted the words “or aircraft”.

Section 31 After the words “allowance to” there shall be inserted the words “owners or” and after the word “vessels,” where it first occurs, there shall be inserted the words “or owners or persons in charge of aircraft”; for the word “seamen” there shall be substituted the word “crew”; and after the word “vessels,” where it secondly occurs, there shall be inserted the words “or aircraft”.

Section 32 For the words “the master or one of the officers or crew of a vessel inward bound” there shall be substituted the words “the master of “a vessel inward bound or the pilot or other “person in charge of an aircraft inward “bound or one of the officers or crew of such “a vessel or aircraft”: after the word “master” where it secondly occurs there shall be inserted the words “of the vessel or “the pilot or other person in charge of the “aircraft”: the words “his vessel” shall cease to have effect: and after the word “vessel” where it last occurs, there shall be inserted the words “or aircraft”.

Section 34 In subsection (1) for the words “the British Islands or any British possession” there shall be substituted the words “a British postal country or British postal agency”.
In subsection (2) for the words from the beginning of the subsection to “established” there shall be substituted the words “The “Postmaster - General shall, within any “British postal country”; in paragraph (e) after the word “vessels” in both places where it occurs there shall be inserted the words “or aircraft”.
In subsection (3) there shall be inserted at the end of paragraph (i) the words “or public

Enactment
amended.

Amendment.

1ST SCH.
—cont.The Post Office
Act, 1908 :—Section 34—
cont.

“ service vehicles within the meaning of the “ Road Traffic Acts, 1930 to 1934 ” : at the beginning of paragraph (ii) of that subsection there shall be inserted the words “ owners or “ pilots or other persons in charge of aircraft, “ or ” and after the word “ ships ” where it secondly occurs, there shall be inserted the word “ aircraft ” and for the words “ within “ His Majesty’s dominions out of the British “ Islands ” there shall be substituted the words “ or places within a British postal country ” : in paragraph (iii) of that subsection after the word “ vessel ” there shall be inserted the word “ aircraft ” ; in paragraph (iv) of that subsection for the words “ His Majesty’s dominions ” there shall be substituted the words “ a British postal country ” .

At the end of subsection (5) there shall be inserted the words “ in addition to any fine “ to which he may be liable under the last “ foregoing subsection ” .

In subsection (6) after the word “ water ” there shall be inserted the words “ or by air,” and after the word “ vessels ” there shall be inserted the words “ or aircraft ” .

Section 42 The words “ subject to any special directions of the Postmaster-General ” shall be omitted, and for the words “ so appointed ” there shall be substituted the words “ appointed in that behalf ” .

Section 47 In subsection (3) for the words “ that dealing ” and “ the dealing,” there shall be substituted the words “ that or any other dealing ” .

Section 50 In paragraph (b) the words from “ from a mail bag ” to “ mail ”, where it secondly occurs, shall cease to have effect.

Section 51 After the word “ vessel ” there shall be inserted the words “ vehicle or aircraft ” .

Section 57 After the words “ transmission by post ” there shall be inserted the words “ or to perform “ any other duty in respect of such a mail bag “ or postal packet ” : at the beginning of paragraph (a) there shall be inserted the words “ without authority ” .

1ST SCH.
—cont.Enactment
amended.

Amendment.

The Post Office
Act, 1908 :—

- Section 61 In subsection (1) after the words "letter box" in both places where they occur, there shall be inserted the words "or telephone kiosk or cabinet", and after the words "the box" there shall be inserted the words "kiosk or cabinet or its".
- Section 63 In subsection (1), after the words "attempt to send" there shall be inserted the words "or procure to be sent;" in paragraph (b) of that subsection after the word "engraving" there shall be inserted the words "cinematograph film"; the word "or," where it secondly occurs, shall be omitted; and after the word "card" there shall be inserted the words "or written communication": and in paragraph (c) of that subsection for the words "of an indecent, obscene or grossly offensive character," there shall be substituted the words "which are grossly offensive or of an indecent or obscene character".
- Section 64 In subsection (1) for the words "foreign or colonial postal authority," in both places where they occur, there shall be substituted the words "other postal administration".
- Section 68 Subsections (1) and (2) shall cease to have effect.
- Section 71 In subsection (4) for the words "the Petty Sessions (Ireland) Act, 1851," there shall be substituted the words "those Acts".
- Section 76 After the word "incurred" where it first occurs there shall be inserted the words "or alleged to be incurred".
- Sections 84, 85 and 86. For the words "British possession" and "possession" wherever they occur there shall be substituted the word "colony".
- Section 87 For the words from the beginning of the section to "accordingly" there shall be substituted the words "Where an arrangement is made with the government or postal administration of any other country for the transmission of small sums through the post offices under the charge of the Postmaster-General and the postal administration of the other country by means of money orders, the provisions of this Act with respect to money

14 & 15 Vict;
c. 93.

Enactment
amended.

Amendment.

1st SCH.
—cont.The Post Office
Act, 1908 :—Section 87—
cont.

“ orders shall, so far as is consistent with the
 “ tenor thereof, and subject to any modifica-
 “ tions prescribed by post office regulations,
 “ apply in like manner as if an order issued
 “ in pursuance of the arrangement, whether
 “ by an officer of the post office or by an
 “ officer of the other postal administration,
 “ were a money order within the meaning of
 “ those provisions, and such portions of
 “ those provisions as enact punishments
 “ shall apply accordingly ”.

Section 89 For the definitions of “ inland ”, “ inward
 bound ” and “ outward bound ”, the following
 shall be substituted :—

The expression “ inland ” when used in
 relation to any postal packet or any
 description thereof means in the case of
 the British Islands, posted within the
 British Islands and addressed to some place
 in the British Islands, and in the case of
 any other British postal country, posted
 within that country, and addressed to some
 place in it, and where used in relation to
 postage, means the postage charged on the
 packet;

The expression “ inward bound ” when
 used in relation to any vessel or aircraft
 shall include vessels or aircraft bound as
 well to any port or place in the British
 Islands as to any port or place in any
 other British postal country;

The expression “ outward bound ” when
 used in relation to any vessel or aircraft
 shall include vessels or aircraft bound as
 well from any port or place in the British
 Islands as from any port or place in any
 other British postal country.

Section 90 In paragraph (b) after the word “ post ” there
 shall be inserted the words “ or to an officer
 “ of the post office to be dealt with in the
 “ course of his duty ”.

1ST SCH.
—*cont.*Enactment
amended.

Amendment.

The Post Office
Act, 1913 :—
Section 1

For the words “ British possession or protectorate ” in each place where they occur, there shall be substituted the words “ part of His Majesty’s dominions or a British protectorate or protected state or a territory in respect of which a mandate on behalf of the League of Nations has been accepted by His Majesty and is being exercised by His Majesty’s Government in the United Kingdom or in any of his Dominions ”.

Section 16.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
8 Edw. 7. c. 48	The Post Office Act, 1908.	Paragraph (c) of subsection (1) of section two; paragraph (1) of section eight; section nine; in section seventeen the words “ at a rate not exceeding the letter rate of postage ”; provisos (a) and (b) to subsection (1) of section twenty-four; in subsection (1) of section thirty the words “ when not exceeding the weights and ” and the words from “ but subject ” to the end of the subsection, and paragraph (a) of subsection (2) and subsection (3) of that section; in section thirty-two the words “ his vessel ”; section thirty-five; section thirty-seven; subsection (4) of section forty-six; in paragraph (b) of section fifty the words from “ from a mail bag ” to “ mail,” where it secondly occurs; in paragraph (a) of subsection (1) of section sixty-five the words “ or knowingly use for any

2ND SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
8 Edw. 7. c. 48 —cont.	The Post Office Act, 1908—cont.	“ postal purpose any fictitious “ stamp ” and subsection (4) of that section; subsections (1) and (2) of section sixty-eight; in proviso (b) to section eighty-seven the words “ not exceeding the “ maximum amount fixed by “ this Act for postal orders ”; in section eighty-nine the definition of “ British possession ”; the First Schedule.
3 & 4 Geo. 5. c. 11.	The Post Office Act, 1913.	In section one the words from “ For the purposes of this provision ” to the end of the section.
15 & 16 Geo. 5. c. 86.	The Criminal Justice Act, 1925.	In section thirty-four the words “ the Postmaster-General ” in both places where they occur.

CHAPTER 16.

An Act to extend the powers of the Receiver for the Metropolitan Police District with respect to the borrowing of money for the provision of better accommodation required for the purposes of the Metropolitan Police Force; and to enable the Public Works Loan Commissioners to lend money for such purposes. [11th April 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In addition to any sums which he has power to borrow under section three of the Metropolitan Police Act, 1886, as amended by any subsequent enactment, Extension of borrowing powers. 49 & 50 Vict. c. 22.